



## CHAPTER viii.

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 relating to Dundee Corporation and Water and Gas.      A.D. 1925.  
[5th March 1925.]

**W**HEREAS His Majesty's Secretary for Scotland has after inquiry held before Commissioners made the Provisional Order set forth in the schedule hereunto annexed under the provisions of the Private Legislation Procedure (Scotland) Act 1899 and it is requisite that the said Order should be confirmed by Parliament:      62 & 63 Vict. c. 47.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Provisional Order contained in the schedule hereunto annexed shall be and the same is hereby confirmed.      Confirmation of Order in schedule.

2. This Act may be cited as the Dundee Corporation and Water and Gas Order Confirmation Act 1925.      Short title.



A.D. 1925.

SCHEDULE.

DUNDEE CORPORATION AND WATER AND  
GAS.

*Provisional Order to confer further powers on the Dundee Corporation for the widening alteration and improvement of streets the construction of new tramways for the modification and partial abandonment of authorised work the extension of limits of water supply and for other purposes.*

WHEREAS the lord provost magistrates and councillors of the city and royal burgh of Dundee (hereinafter called "the Corporation" and "the city" respectively) are vested with the municipal and police administration thereof and are the local authority within the city under the Public Health (Scotland) Act 1897 and are also the local authority and road authority within the city under the Tramways Act 1870 :

And whereas the Dundee Water Commissioners (hereinafter called "the Water Commissioners") were incorporated by the Dundee Water Act 1869 and supply water to the burgh of Dundee and suburbs and places adjacent within the limits of supply and of compulsory supply as defined by that Act and extended by the Dundee Water Act 1882 the Dundee Water Act 1891 and the Dundee Water Order 1905 :

And whereas it is expedient that the limits for the compulsory supply of water by the Water Commissioners as specified under the said Acts and Order should be extended as in this Order is provided :

And whereas by the Dundee Gas Act 1868 the Dundee Gas Commissioners (hereinafter called "the Gas Commissioners") were incorporated for the purpose of supplying with gas the town of Dundee and suburbs thereof and places adjacent thereto and by various Acts since passed the said Act has been amended and extended and various further powers have been conferred upon the Gas Commissioners :



And whereas it is expedient and would be of local and public advantage that the Corporation should be authorised to make and maintain the widenings alterations and improvements of streets hereinafter in this Order described and to acquire lands therefor : A.D. 1925.

And whereas the Corporation are the owners of the existing tramways within the city and it is expedient and would be of local and public advantage that the Corporation should be authorised to make and maintain and work and use the additional tramways by this Order authorised with the object of completing and supplementing their existing system of tramways and that certain of the powers and provisions contained in their existing Tramways Acts should be made applicable to such additional tramways :

And whereas by the Dundee Boundaries Act 1913 the burgh of Broughty Ferry and certain portions of the county of Forfar were incorporated with and added to the city and it was by the said Act provided that the Corporation should within ten years apply for and endeavour to obtain powers to enable them to construct and maintain a new road along the foreshore as therein set forth :

And whereas by the Dundee Corporation Order 1921 (hereinafter called " the Order of 1921 ") the Corporation were authorised to make and maintain the road and sea wall works therein described being the road along the foreshore referred to in the Dundee Boundaries Act 1913 :

And whereas owing to the abnormal price of labour and materials the cost of carrying out the road and works authorised by the Order of 1921 has become prohibitive and it would therefore be of local and public advantage that the Corporation should be authorised to modify and partially abandon the same :

And whereas the Corporation are vested as part of the common good of the city with the public parks known as Stobsmuir and Law Hill and although the Caird Park is vested in the Corporation as police commissioners the construction and laying out of the same has been done out of moneys belonging to the said common good :



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— And whereas it is expedient and would be of local and public advantage that the said parks should be transferred to the Corporation in their capacity as police commissioners and that the keeping up of the same and other necessary expenses connected therewith should be provided for as in this Order is provided :

And whereas it is necessary in the interests of the community that the buildings of the Dundee Royal Infirmary should be extended and the bleaching green hereinafter mentioned is the only place on which such extension can be made :

And whereas the said bleaching green is part of the common good of the city and Dudhope house and grounds belong to the directors of the Dundee Royal Infirmary :

And whereas the directors of the Dundee Royal Infirmary are willing to agree with the Corporation for the excambion of the Dudhope house and grounds or part thereof for the bleaching green for the purposes of such extension and it is expedient and would be in the public interest that the Corporation should be authorised to enter into such an agreement :

And whereas by the Dundee Corporation (Improvements and Tramways) Act 1913 (hereinafter called "the Improvements and Tramways Act 1913") the Corporation were authorised to make and maintain (inter alia) certain street works Nos. 1 to 8 both inclusive as described in that Act and to enter upon take and use the lands houses and property required for or in connection with the said works and it was provided that such street works should be completed within ten years from the commencement of that Act and that the powers of the Corporation for the compulsory purchase of lands for the purposes of that Act should cease after the expiration of six years from the commencement of that Act :

And whereas by the Dundee Corporation Order 1920 the time within which such street works were to be completed was extended for ten years and it was provided that the powers for the compulsory purchase of lands for those purposes should cease after the expiration of a further period of six years :

And whereas owing to the difficulty of rehousing the people who would be disturbed and to the abnormal



price of labour and materials it has not hitherto been possible to carry out the said works Nos. 1 to 8 authorised by the Improvements and Tramways Act 1913 and it is expedient that the time limited for the completion of the said works and for the purchase of lands therefor should be extended as by this Order is provided : A.D. 1925.

And whereas the estimated cost of the works by this Order authorised to be modified and partially abandoned amounted to the sum of two hundred and six thousand pounds and the estimated cost of the works as so modified amounts to the sum of seventy thousand pounds :

And whereas it is expedient that the Corporation should be authorised to borrow and raise additional money necessary for the purposes of this Order and to levy rates and assessments in respect thereof :

And whereas it would be of local and public advantage that amendment should be made in the mode of assessment levying and collecting of the rates and assessments within the city as hereinafter by this Order provided :

And whereas estimates have been prepared by the Corporation for and in relation to the purposes hereinafter mentioned in respect of which they are by this Order authorised to borrow money and such estimates are as follows :—

|                                                                              |        |
|------------------------------------------------------------------------------|--------|
| For the construction of the street works                                     | £      |
| by this Order authorised and the purchase of lands and properties therefor - | 81,650 |
| For the construction of the additional tramways by this Order authorised -   | 35,953 |

And whereas the several works included in such estimates are permanent works and it is expedient that the cost thereof should be spread over a period of years :

And whereas it is expedient that the further powers and provisions hereinafter in this Order contained should be conferred on the Corporation and made as by this Order provided :

And whereas plans and sections showing the lines situations and levels of the several street works and tramways authorised by this Order and also a book of



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A.D. 1925. reference to such plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands houses and other property required or which may be taken for the purposes or under the powers of this Order were duly deposited with the principal sheriff clerk of the county of Forfar at his offices in Dundee and Forfar respectively and are hereinafter referred to as the deposited plans sections and book of reference :

And whereas the purposes aforesaid cannot be effected without an Order of the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899 :

Now therefore in pursuance of the powers contained in the last mentioned Act the Secretary for Scotland orders as follows :—

Short title  
and citation  
of Acts.

1. This Order may be cited for all purposes as the Dundee Corporation and Water and Gas Order 1925.

The Dundee Corporation Acts 1871 to 1921 and this Order may be cited together as the Dundee Corporation Acts 1871 to 1925.

The Dundee Water Acts 1869 to 1911 and this Order so far as relating to water and water purposes may be cited together as the Dundee Water Acts 1869 to 1925.

The Dundee Gas Acts 1868 to 1921 and this Order so far as relating to gas and gas purposes may be cited together as the Dundee Gas Acts 1868 to 1925.

Division of  
Order into  
Parts.

2. This Order is divided into Parts as follows :—

Part I.—Preliminary.

Part II.—Street works.

Part III.—Tramways.

Part IV.—Lands.

Part V.—Public parks.

Part VI.—Water.

Part VII.—Sale of coal.

Part VIII.—Borrowing of money and rates and assessments.

Part IX.—Miscellaneous.



PART I.

A.D. 1925.

PRELIMINARY.

3. The Lands Clauses Acts and section 3 (Interpre- Incorporation of  
tation of terms) Part II. (Construction of tramways) and Acts.  
Part III. (General provisions) of the Tramways Act 1870  
are so far as the same are applicable for the purposes  
of and are not varied by or inconsistent with this Order  
incorporated with and form part of this Order Pro-  
vided that section 46 of the Tramways Act 1870 shall  
have effect with reference to the tramways by this Order  
authorised as if the sheriff of the county of Forfar was  
therein mentioned instead of the Board of Trade Pro-  
vided also that notwithstanding anything in this Order  
contained if any of the works authorised to be executed  
by this Order involves or is likely to involve any altera-  
tion of any telegraphic line belonging to or used by the  
Postmaster-General the provisions of section 7 of the  
Telegraph Act 1878 shall apply (instead of the provisions  
of section 30 of the Tramways Act 1870) to any such  
alteration The expression "telegraphic line" in this  
Order has the same meaning as in the Telegraph Act  
1878.

4. In this Order terms words and expressions to Interpreta-  
which meanings are assigned by the Dundee Police and tion.  
Improvement Consolidation Act 1882 or the Tramways  
Acts or by the Acts wholly or partially incorporated  
with this Order shall subject to the provisions of this  
Order have the same respective meanings unless there  
be something in the subject or context repugnant to  
such construction Further in this Order the following  
expressions shall have the several meanings by this  
section assigned to them unless there be something in  
the subject or context repugnant to such construction  
(that is to say) :—

" City " means the city and royal burgh of Dundee;

" Corporation " means the lord provost magistrates  
and councillors of the city;

" The Water Commissioners " means the Dundee  
Water Commissioners incorporated by the Act of  
1869;

" The Water Acts " means the Dundee Water Acts  
1869 to 1911;



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“The Act of 1869” means the Dundee Water Act 1869;

“The Gas Commissioners” means the Dundee Gas Commissioners as constituted by the Dundee Corporation Act 1894;

“Sheriff” means the sheriff of the county of Forfar and includes his substitutes;

“Sheriff clerk” means the principal sheriff clerk of the county of Forfar;

“The Act of 1882” means the Dundee Police and Improvement Consolidation Act 1882;

“The Act of 1891” means the Dundee Water Act 1891;

“The Order of 1905” means the Dundee Water Order 1905;

“The Order of 1907” means the Dundee Corporation Order 1907;

“The Tramways Acts” means the Tramways Acts as defined by the Dundee Corporation (Improvements and Tramways) Act 1913 and also that Act;

“The Improvements and Tramways Act 1913” means the Dundee Corporation (Improvements and Tramways) Act 1913;

“The Boundaries Act 1913” means the Dundee Boundaries Act 1913;

“The Order of 1921” means the Dundee Corporation Order 1921;

“The commencement of this Order” means the date of the passing of the Act confirming this Order.

PART II.

STREET WORKS.

Power to  
make street  
works.

5. Subject to the provisions of this Order the Corporation may make and maintain in the lines and situations and upon the lands delineated on the deposited plans and described in the deposited book of reference or some part or parts thereof and according to the levels shown on the deposited sections the widenings alterations and improvements of streets hereinafter described or some



of them or some part or parts thereof respectively with all proper works and conveniences connected therewith (all in this Order called "street works"). A.D. 1925.

6. The street works hereinbefore referred to and authorised by this Order will be wholly situate within the city and the Dundee combination parish in the county of Forfar and are as follows (that is to say):—

Description  
of street  
works.

- (1) The widening alteration and improvement (marked "Work No. 1" on the deposited plans) of Nethergate and Perth Road on the north side thereof commencing at a point in Perth Road 3 yards or thereabouts west from the prolongation of the east line of Airlie Place and terminating at a point in Nethergate 25 yards or thereabouts east from the prolongation of the east line of Park Place :
- (2) The widening alteration and improvement (marked "Work No. 2" on the deposited plans) of Old Craigie Road on the west side thereof commencing at a point in Old Craigie Road 45 yards or thereabouts north from the north line of Arbroath Road and terminating at a point in Arbroath Road 9 yards or thereabouts west from the existing west line of Old Craigie Road :
- (3) The widening alteration and improvement (marked "Work No. 3" on the deposited plans) of Arbroath Road on the south side thereof commencing at a point in Arbroath Road 42 yards or thereabouts west from the centre line of Dalglish Road and terminating at a point 62 yards or thereabouts east from the said centre line of Dalglish Road :
- (4) The widening alteration and improvement (marked "Work No. 4" on the deposited plans) of Forfar Road on the east and west sides thereof commencing at a point in Forfar Road 24 yards or thereabouts south from the intersection of the centre lines of Forfar Road and Clepington Road and terminating at a point 25 yards or thereabouts north from the intersection of the centre lines of Forfar Road and Clepington Road :



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—

- (5) The widening alteration and improvement (marked "Work No. 5" on the deposited plans) of Kinghorne Road on the north and south sides thereof commencing at a point in Kinghorne Road 10 yards or thereabouts east from the prolongation of the west line of Rosebank Street and terminating at a point in Strathmartine Road 21 yards or thereabouts north from the existing north line of Kinghorne Road :
- (6) The widening alteration and improvement (marked "Work No. 6" on the deposited plans) of West Queen Street on the north and south sides thereof commencing at a point in Bayfield Road 5 yards or thereabouts west from the east line of Bayfield Road and terminating at a point in Claypots Road 3 yards or thereabouts east from the west line of Claypots Road :
- (7) The widening alteration and improvement (marked "Work No. 7" on the deposited plans) of Broughty Ferry Road on the north and south sides thereof commencing at the point where the centre lines of Dalgleish Road and Broughty Ferry Road intersect and terminating at a point in Broughty Ferry Road 153 yards or thereabouts east from the prolongation of the east line of the street called Springhill.

Application  
of sections  
of Improve-  
ments and  
Tramways  
Act 1913.

7. The sections hereinafter specified of the Improvements and Tramways Act 1913 shall so far as applicable and not varied by or inconsistent with the provisions of this Order extend and apply mutatis mutandis to the street works by this Order authorised and to the Corporation with reference thereto as fully and effectually as if those sections had been re-enacted in this Order (that is to say) :—

Section 7 (Ownership of streets);

Section 8 (Lateral and vertical deviations);

Section 9 (Power to cross roads &c. temporarily);

Section 10 (Corporation to form carriageways &c.);



Section 11 (Corporation empowered or may be required to underpin or otherwise strengthen houses near street works); A.D. 1925.

Section 12 (Power to make minor works connected with street works);

Section 13 (As to removal and relaying of water pipes);

Section 14 (As to removal and relaying of electric cables and gas pipes);

Section 15 (Power to alter steps doors &c.);

Section 16 (Lands thrown into streets to be public highway).

8. The street works hereinbefore described and authorised by this Order shall be completed within ten years from the commencement of this Order and on the expiration of that period the powers by this Order granted to the Corporation for executing the same or otherwise in relation thereto shall cease except as to so much thereof as shall then be completed. Period for completion of street works.

9.—(1) The Corporation shall be entitled to limit and modify Works Nos. 1 2 and 3 authorised by the Order of 1921 and described in section 5 (Description of road and sea wall works) of that Order so as to conform to the lines and extent of the works shown and delineated on a plan signed in triplicate by Sir Henry Craik K.C.B. M.P. the Chairman of the Commissioners to whom this Order was referred so far as the said works are within the limits of deviation provided by the Order of 1921 and the Corporation may and shall abandon and relinquish the construction of the said Works Nos. 1 2 and 3 of the Order of 1921 in so far as they differ from or are in excess of the works shown and delineated on the said plan. One copy of the said plan shall be deposited with the town clerk of the city one with the secretary of the Broughty Ferry Ratepayers' Association and one with the sheriff clerk of the county of Forfar. Modification and partial abandonment of certain works previously authorised.

(2) The Corporation shall commence the construction of the works shown and delineated on the plan referred to in the immediately preceding subsection hereof or one or other of these works within two years from the commencement of this Order and shall complete



A.D. 1925. — all these works within the period prescribed by section 14 (Period for completion of road and sea wall works) of the Order of 1921 and if the powers of the Corporation are found to be insufficient to enable them to carry out the whole of the works shown and delineated on the said plan the Corporation shall apply to Parliament for and use their best endeavours to obtain any further powers which may be necessary so that the works shown and delineated on the said plan may be completed within the said period.

(3) The road to be constructed as part of the said Work No. 1 as hereby limited and modified shall be of a minimum width of forty feet and the road to be constructed as part of the said Works Nos. 2 and 3 as hereby limited and modified shall be of a minimum width of forty-four feet of which thirty feet shall be carriageway.

(4) The Order of 1921 shall apply to Works Nos. 1 2 and 3 as hereby limited and modified in the same way as if they had been authorised therein subject to such limitation and modification.

(5) Subsections (4) (5) and (6) of section 30 (Provision as to Broughty Ferry) of the Boundaries Act 1913 are hereby repealed.

### PART III.

#### TRAMWAYS.

Power to  
make new  
tramways.

10. Subject to the provisions of this Order and of Parts II. and III. of the Tramways Act 1870 the Corporation may make form lay down work use and maintain the tramways hereinafter described in the lines and according to the levels shown on the deposited plans and sections and in all respects in accordance with those plans and sections with all necessary and proper rails plates works and conveniences connected therewith and may take up remove or alter or connect the rails of their existing tramways interfered with or rendered unnecessary by the laying down of the tramways hereby authorised Provided that nothing in this Order shall authorise any interference with electric lines and works of any undertakers under the Electric (Supply) Acts 1882 to 1922 to which the provisions of section 15 of the Electric Lighting Act 1882 apply except in accordance with and subject to the provisions of that section.



11. The tramways hereinbefore referred to and authorised by this Order will be wholly situate within the city and in the Dundee combination parish and county of Forfar and are as follows (that is to say):—

A.D. 1925.  
 —  
 Description  
 of new  
 tramways.

Tramway No. 1 (Double line) 1 furlong 3·63 chains or thereabouts in length wholly situate within the burgh of Dundee and parish of Dundee combination commencing by a junction with the existing tramway of the Corporation at a point in Forfar Road 1·24 chain south from the prolongation of the south line of Lammerton Terrace and passing thence in a northerly direction along the said Forfar Road to and curving in a north-westerly direction into and along Kingsway and terminating at a point in the centre line thereof 2·50 chains west from the west line of Forfar Road:

Tramway No. 2 (Double line) 1 mile 1 furlong 5·44 chains or thereabouts in length wholly situate within the burgh of Dundee and parish of Dundee combination commencing by a junction with the existing tramway of the Corporation in Strathmartine Road at a point therein where the centre lines of Strathmartine Road and Loons Road intersect and passing thence in a westerly direction then in a southerly direction and again in a westerly direction along the said Loons Road to and into Logie Street and terminating by a junction with the existing tramway of the Corporation at a point where the centre lines of Loons Road and Logie Street intersect.

12. Section 22 (Application of sections of former Acts) of the Improvements and Tramways Act 1913 and the sections of the Acts therein referred to shall so far as not varied by or inconsistent with the provisions of this Order extend and apply mutatis mutandis to the tramways authorised by this Order and to the Corporation and any lessees of the Corporation and to all other persons in respect thereof as fully and effectually as if the sections referred to in the said section 22 had been re-enacted in this Order with reference thereto.

Application  
 of sections  
 of former  
 Acts.

13. The sections hereinafter specified of the Improvements and Tramways Act 1913 hereinafter mentioned shall so far as not varied by or inconsistent with the provisions of this Order extend and apply mutatis

Application  
 of sections  
 of Improve-  
 ments and  
 Tramways  
 Act 1913..



A.D. 1925. mutandis to the tramways authorised by this Order and to the Corporation and any lessees of the Corporation and to all other persons in respect thereof as fully and effectually as if those sections had been re-enacted in this Order with reference thereto (that is to say) :—

Section 23 (As to erection of posts &c. on carriageway);

Section 24 (Plan of proposed mode of construction of tramways);

Section 25 (Use of tramway posts by Postmaster-General).

Period for completion of new tramways.

14. The tramways authorised by this Order shall be completed within four years from the commencement of this Order and on the expiration of that period the powers by this Order granted to the Corporation for executing the same or otherwise in relation thereto shall cease except as to so much thereof as shall then be completed.

Tramways to form part of Corporation tramways.

15. The tramways and the works in connection therewith by this Order authorised shall for all purposes of tolls rates fares and charges and for all other purposes whatsoever be part of the Corporation tramways and tramway undertaking.

Accounts to be furnished to Minister of Transport.

16. The Corporation shall every year within three months after the closing of their financial year or such longer period as the Minister of Transport may allow furnish to the Minister of Transport a copy of the annual accounts of their tramway undertaking.

#### PART IV.

##### LANDS.

Power to take lands for works &c.

17. Subject to the provisions of this Order the Corporation may compulsorily or by agreement enter upon take and use all or any of the lands houses and property shown on the deposited plans and specified and described in the deposited book of reference required for or in connection with the street works authorised by this Order.

Limitation of time for compulsory purchase of lands.

18. The powers of the Corporation for the compulsory purchase of lands houses and property required for or in connection with the street works authorised



by this Order shall cease after the expiration of five A.D. 1925  
years from the commencement of this Order.

19. The sections hereinafter specified of the Im- Application  
provements and Tramways Act 1913 shall so far as of sections  
applicable and not varied by or inconsistent with the of Improve-  
provisions of this Order extend and apply mutatis ments and  
mutandis to the lands houses and other property autho- Tramways  
rised to be taken and appropriated by this Order and Act 1913.  
the street works by this Order authorised and to the  
Corporation with reference thereto as fully and effectually  
as if those sections had been re-enacted in this Order  
(that is to say):—

Section 31 (Correction of errors in deposited  
plans and book of reference);

Section 32 (Power to take down buildings and  
lay out lands of new);

Section 34 (As to private rights of way over  
lands taken compulsorily);

Section 37 (Purchase of lands by agreement);

Section 38 (Power to take servitudes &c. by  
agreement);

Section 39 (Power to retain sell &c. lands);

Section 40 (Corporation may appropriate lands  
for purposes of Act);

Section 41 (Corporation not to be bound to  
execute all works &c.).

20. Whereas in the exercise by the Corporation of Owners may  
the powers of this Order it may happen that portions be required  
only of certain properties shown or partly shown on the to sell parts  
deposited plans will be sufficient for the purposes of this only of cer-  
Order or any of them and that such portions or some tain pro-  
other portions less than the whole can be severed from perties.  
the remainder of the said properties without material  
detriment thereto Therefore the following provisions  
shall have effect:—

The owner of and persons interested in any of the  
properties whereof the whole or part is described  
in the Fourth Schedule to this Order and whereof  
a portion only is required for the purposes of this  
Order or each or any of them are in this section  
included in the term “the owner” and the said



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properties are in this section referred to as "the scheduled properties";

The provisions of subsections (2) to (7) both inclusive of section 33 (Owners may be required to sell parts only of certain properties) of the Improvements and Tramways Act 1913 are incorporated with and form part of this section;

The provisions of this section shall be in force notwithstanding anything in the Lands Clauses Consolidation (Scotland) Act 1845 contained and nothing contained in or done under this section shall be held as determining or as being or implying an admission that any of the scheduled properties or any part thereof is or is not or but for this section would or would not be subject to the provisions of section 90 of the Lands Clauses Consolidation (Scotland) Act 1845;

The provisions of this section shall be stated in every notice given thereunder to sell and convey any premises.

For protec-  
tion of rail-  
way com-  
panies.

21. The Corporation shall not under the powers of this Order take or acquire by compulsion any lands or property of the London and North Eastern and London Midland and Scottish Railway Companies or either of them.

## PART V.

### PUBLIC PARKS.

Conveyance  
of Stobs-  
muir and  
Law Hill.

22.—(1) The Corporation as trustees of the common good may grant and execute to and in favour of the Corporation in their capacity as police commissioners conveyance of the lands now laid out as public parks and known by the names of Stobsmuir and Law Hill together with the whole buildings houses boundary walls walks trees shrubs and others thereon and implements used in connection therewith in trust for the inhabitants of the city and its vicinity to be used in all time coming as public parks and the Corporation shall repay to the common good of the city the capital value of Stobsmuir and Law Hill as the said value appears in the accounts of the Corporation for the year ending 15th May 1924 and all sums spent in the laying out of the Caird Park,



(2) The whole costs and expenses incurred and to be incurred in and about the said conveyance shall be paid by the Corporation in their capacity as police commissioners. A.D. 1925.

23. All expenses of keeping the said parks and Caird Park in proper order and for defraying the other expenses connected therewith shall be met and defrayed out of the assessment for the general purposes mentioned in and such expenses shall be deemed to be embraced under the first head of section 32 (Estimates to be made up) of the Act of 1882. Upkeep of parks.

24. The provisions of Part XXV. (Public parks and places of public resort or recreation) of the Act of 1882 and this Order shall subject to the provisions of this Order apply to all the said parks as fully in all respects as if those provisions were herein enacted with reference thereto. Provisions of Act of 1882 to apply to parks.

25. The Corporation as trustees of the common good may grant and execute to and in favour of the directors of the Dundee Royal Infirmary a conveyance or excambion of the land now known as the bleaching green or any part thereof together with any buildings boundary walls walks trees shrubs and others thereon to be held by them for the purposes of the Royal Infirmary except that part coloured red on a plan signed in duplicate by Sir Henry Craik K.C.B. M.P. the Chairman of the Commissioners to whom this Order was referred one copy of which shall be deposited with the town clerk of the city and the other copy with the sheriff clerk of the county of Forfar. Conveyance of bleaching green.

26. The directors of the Dundee Royal Infirmary may grant to and execute in favour of the Corporation as part of the common good a conveyance or excambion of the Dudhope House and grounds or any part thereof together with the whole buildings houses boundary walls walks trees shrubs and others thereon in trust for the inhabitants of the city. Conveyance of Dudhope House and grounds.

27. In the event of the Corporation executing a conveyance or excambion as provided for in the section of this Order the marginal note of which is "Conveyance of bleaching green" the Corporation shall acquire and lay out as a public park or open space for the use of the Obligation on Corporation in event of exercise of powers relating to



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A.D. 1925. inhabitants of the city in all time coming a part of  
 "bleaching Dudhope House grounds not less in area than the ground  
 green." so conveyed or exchanged to the directors of the Dundee  
 Royal Infirmary.

Restriction on buildings on bleaching green. 28. In the interests of owners of properties abutting on the north side of Somerville Place and on the east side of Constitution Road so far as fronting any of the ground which may be conveyed under the provisions of the section of this Order the marginal note of which is "Conveyance of bleaching green" any buildings which may be erected upon the ground to be so conveyed shall not be erected nearer to the line of the existing buildings on the north side of Somerville Place than one hundred and twenty feet and the ridge of the roof of any buildings to be so erected fronting Somerville Place shall not exceed a height of twenty-eight feet above the natural surface of the ground at any point one hundred and twenty feet distant from the line of the said existing buildings on the north side of Somerville Place and no buildings which may be erected on the said ground shall be erected further east than a line thirty feet to the west of the present west line of Constitution Road.

Repeal of section 24 of 6 Geo. IV. c. clxxxiii. 29. Section 24 of 6 George IV. c. clxxxiii (Magistrates to provide bleaching ground instead of meadow) shall be and the same is hereby repealed.

PART VI.

WATER.

Extension of compulsory limits of supply. 30. Subject to the provisions of this Order the limits of compulsory supply specified in the Act of 1869 as extended by the Dundee Water Act 1882 the Act of 1891 and the Order of 1905 are hereby further extended to and shall comprise and include the following additional areas namely:—

- (1) Commencing at a point on the existing limits of compulsory supply three hundred yards or thereby north-west of the intersection of the centre lines of Harestane Road and Baldovan Road thence proceeding in a straight line in an easterly direction to a point in the centre of the Dighty Water on the west side of the bridge



carrying the Baldovan Road over the said Dighty Water thence in an easterly north-easterly and south-easterly direction following the course and along the centre of the said Dighty Water to a point in the said centre of the Dighty Water seventy yards or thereby east from the east side of the road leading from Dundee to Forfar thence in a southerly direction along an imaginary line parallel to and distant seventy yards or thereby from the east side of the said road leading from Dundee to Forfar to a point where such imaginary line would intersect the boundary of the existing limits of compulsory supply thence in a westerly and north-westerly direction along the line of the existing limits of compulsory supply to the point of commencement;

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—

- (2) Commencing at a point on the existing limits of compulsory supply 193 yards or thereby to the west of the line of intersection of the centre of the road leading from Claypots to Baldovie and the Arbroath Road thence proceeding in a straight line in an easterly direction along an imaginary line parallel to and distant 70 yards or thereby from the north side of the said Arbroath Road to a point 200 yards to the north-east of the milestone Dundee 4 miles Arbroath 13 miles on the said Arbroath Road thence in a south-easterly direction to the boundary of the existing limits of compulsory supply at East Balgillo; and
- (3) Commencing at a point on the existing limits of compulsory supply opposite Barnhill Farm 210 yards or thereby west of the north-west line of the road leading from Balmossie Street Barnhill to Balmossie Mill thence in a straight line in a north-easterly direction to the north-west line of the said road then in a south-easterly direction along the said line to the existing limits of supply and thence westwards along the line of the existing limits to the point of commencement:

And the provisions of the Water Acts shall apply to the said extended limits respectively as fully and effectually as they apply to the limits of compulsory supply



[Ch. viii.] *Dundee Corporation and* [15 GEO. 5.]  
*Water and Gas Order Confirmation Act, 1925.*

A.D. 1925. — respectively specified in the Act of 1869 the Dundee Water Act 1882 the Act of 1891 and the Order of 1905 Provided that the domestic water rate provided by section 45 (Estimate to be considered and domestic water rate imposed) of the Act of 1869 to be assessed and levied by the Water Commissioners as therein mentioned shall in like manner be assessed and levied by them within the extended areas from and after the said fifteenth day of May one thousand nine hundred and twenty-five to the same amount as the said rate shall for the time being be assessed and levied by the Water Commissioners within the remaining parts of their limits of compulsory supply Provided also that the public water rate provided by section 46 (Public water rate to be levied) of the Act of 1869 as amended by section 64 (Public water rate increased) of the Dundee Water Order 1911 to be assessed and levied by the Water Commissioners as therein mentioned shall in the manner and subject to the exceptions and limitations mentioned in those sections be assessed and levied by them within the said extended areas from and after the fifteenth day of May one thousand nine hundred and twenty-five.

PART VII.

SALE OF COAL.

As to sale  
of coal.

31. Section 172 (Incorporation of clauses of Police Act) of the Act of 1882 so far as it incorporates sections 259 to 267 of the General Police and Improvement (Scotland) Act 1862 and section 174 (Small quantities of coal to be sold from carts and any labelled bags) of the Act of 1882 are hereby repealed and in lieu thereof the provisions hereinafter in this Part of this Order contained shall apply and have effect in the city.

Coal to be  
sold by  
weight.

32.—(1) All coal shall be sold by weight only except where by the written consent of the purchaser it is sold by boat load or by wagons or tubs delivered from the colliery into the works of the purchaser.

(2) If any person sells coal otherwise than is required by the immediately preceding subsection he shall be liable to a fine not exceeding five pounds for every such sale.



33.—(1) Where any quantity of coal exceeding two hundredweight is delivered by means of any vehicle to a purchaser the seller of the coal shall therewith deliver or cause to be delivered or to be sent by post or otherwise to the purchaser or to his servant before any part of the coal is unloaded a ticket or note in the form contained in the Second Schedule to this Order or as near thereto as circumstances admit.

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—  
Delivery of  
coal over  
two hun-  
dred weight.

(2) If default is made in complying with the requirements of the immediately preceding subsection with respect to the delivery or sending of a ticket or note or if the quantity of coal delivered is less than the quantity expressed in the ticket or note the seller of the coal shall be liable to a fine not exceeding five pounds.

(3) If any person in charge of any such vehicle having received any such ticket or note for delivery to the purchaser refuses or neglects to deliver it as required by this section or on being requested so to do to exhibit it to any inspector of weights and measures or any other officer appointed for the purpose by the Corporation he shall be liable to a fine not exceeding five pounds.

34.—(1) Where any quantity of coal exceeding two hundredweight is conveyed for delivery on sale in a vehicle in bulk the seller of the coal shall cause the weight of the vehicle (unless the vehicle is provided by the purchaser) as well as of the coal contained therein to be previously ascertained by a weighing instrument stamped by an inspector of weights and measures and being on or near to the place from which the coal is brought.

Coal sold in  
bulk.

(2) In any such case the seller of the coal shall insert or cause to be inserted in the ticket or note required by this Part of this Order to be given by him a statement of the correct weight of the vehicle or of the vehicle and of the animal drawing it where both are weighed together with the load as well as of the correct weight of the coal contained in the vehicle.

(3) If any person fails to comply with the requirements of this section he shall be liable to a fine not exceeding five pounds.

35. If any person in charge of any vehicle in which coal is carried wilfully makes any false statement as to the tare weight of the vehicle or wilfully does any act by which either the seller or the purchaser of the coal is

Fraud by  
drivers of  
coal vehi-  
cles.



A.D. 1925. defrauded he shall be liable to a fine not exceeding five pounds.

Deficient weight of coal on small sales.

36. If any person on the sale of coal in any quantity not exceeding two hundredweight fraudulently delivers to the purchaser a less quantity of coal than is agreed to be sold he shall be liable to a fine not exceeding five pounds.

Weighing instrument to be kept where coal sold by retail.

37.—(1) Where coal is sold by retail for delivery at the place where it is kept for sale and there is not at or near such place any weighing instrument stamped by an inspector of weights and measures at which the coal can be weighed the seller shall keep at that place a weighing instrument stamped as aforesaid and shall if so required by any purchaser or by any inspector of weights and measures or any other officer appointed for the purpose by the Corporation weigh any coal before the sale or delivery thereof.

(2) If any person fails to comply with the requirements of this section he shall be liable to a fine not exceeding for a first offence two pounds and for any subsequent offence five pounds.

Weighment of coal or vehicle.

38.—(1) Any seller or purchaser of coal or person in charge of a vehicle in which coal is carried or inspector of weights and measures or other officer appointed for the purpose by the Corporation may require that any coal or any vehicle used for the carriage of coal in bulk be weighed or re-weighed by any weighing instrument stamped by an inspector of weights and measures :

Provided as follows :—

(a) No seller of coal or person in charge of a vehicle in which coal is carried shall be required under this section to carry coal beyond such distance not exceeding half a mile as may be prescribed in that behalf by the Corporation ;

(b) Where any such coal or vehicle has at the instance of the purchaser been weighed or re-weighed in pursuance of this section and found to be of the weight stated in that behalf by the seller of the coal or the person in charge of the vehicle the purchaser shall be



liable to the payment of all reasonable costs A.D. 1925.  
actually incurred of and incidental to the  
weighing or re-weighing. —

(2) If any person obstructs any weighing or re-weighing by this section authorised he shall be liable to a fine not exceeding five pounds.

39. The Corporation may make vary or repeal Byelaws as  
byelaws for all or any of the following purposes (that is to to sale of  
say) :— coal.

- (1) Regulating for the purposes of this Part of this Order the sale of coal in quantities not exceeding two hundredweight :
- (2) Requiring either generally or in specified classes of cases a weighing instrument of a form approved by the Corporation to be carried with any vehicle in which coal is carried for sale or delivery to a purchaser :
- (3) Prescribing the distance beyond which coal is not to be required to be carried for the purpose of being weighed or re-weighed in pursuance of this Part of this Order :
- (4) Fixing the fees to be paid for the use of any weighing instrument maintained by the Corporation :
- (5) Regulating the charges to be made for the cartage and delivery of coal.

40. The following provisions shall apply to such Publication  
of byelaws.  
byelaws (that is to say) :—

- (1) The Corporation shall during two successive weeks give notice of any proposed byelaws by advertisement once weekly in one or more newspapers published and circulating in the city the last advertisement being published not less than one month before such byelaws are submitted to the Board of Trade as hereinafter in this section provided :
- (2) Any person interested shall be entitled within one month from the date of the said last advertisement to lodge with the town clerk objections to such byelaws :



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(3) The Corporation shall after the expiry of one month from the date of the said last advertisement send to the Board of Trade a copy of such byelaws and of such objections thereto if any as may have been lodged and the Board of Trade may hear any person who shall have lodged such objections and they may approve disallow or alter such byelaws:

(4) No such byelaws shall come into operation until they have been approved of by the Board of Trade who before giving such approval may direct one of their inspectors or other person to be appointed by them to inquire into and report on such byelaws and any objections thereto and the Board of Trade shall have the same powers as regards expenses as are conferred on the Secretary for Scotland by section 93 of the Local Government (Scotland) Act 1889; and

(5) The Corporation shall in one or more newspapers published and circulating in the city publish in full such byelaws when approved of by the Board of Trade and shall also supply gratis to every person applying to the town clerk for the same a copy of any proposed byelaws or of any byelaws approved of by the Board of Trade.

Proof of  
byelaws.

41. Any such byelaws approved of by the Board of Trade may be proved by the production of a copy of such byelaws purporting to be certified by the town clerk as a true copy and any such byelaws so proved shall be taken to have been duly made and approved of by the Board of Trade unless and until the contrary is proved.

Fines may  
be imposed.

42. The Corporation by any such byelaws may impose such fines as they think fit not exceeding five pounds for each offence committed against any of such byelaws Provided that such byelaws be so framed as to allow the magistrate to order the whole or part only of such fine to be paid or to remit the whole fine.

Weighment  
of coal in  
shop or  
vehicle.

43.—(1) Any inspector of weights and measures or other officer appointed for the purpose by the Corporation may at all reasonable times enter any building or other



place in which coal is sold or kept or exposed for sale and may stop any vehicle carrying coal for sale or for delivery to a purchaser and may test any weights and weighing instruments found in any such place or vehicle and may weigh any load sack or other less quantity of coal found in any such place or vehicle or which is in course of delivery to any purchaser. A.D. 1925.

(2) If it appears to the magistrate that any load sack or less quantity so weighed is of less weight than that represented by the seller the person selling or keeping or exposing the coal for sale or the person in charge of the vehicle as the case may be shall be liable to a fine not exceeding five pounds.

(3) Any person who obstructs or hinders any inspector or officer acting under this section shall be liable to a fine not exceeding for a first offence five pounds and for any subsequent offence ten pounds.

44.—(1) The Corporation for the purposes of the Act of 1882 the Weights and Measures Acts and this Part of this Order may erect so far as not already done and maintain upon or adjacent to any public street or at any other convenient place not being upon any railway station or depôt or any quay wharf or property of the trustees of the Harbour of Dundee or the London Midland and Scottish Railway Company or the London and North Eastern Railway Company or the Dundee and Arbroath Joint Line Committee nor upon private property such and so many fixed weighing instruments and houses for the accommodation of the persons in charge thereof as they think necessary and may also provide furnish and maintain such and so many portable weighing instruments as they think necessary and may appoint persons to keep and attend any such instruments. Public weighing instruments.

(2) The keeper of any such fixed weighing instrument shall at all reasonable times weigh or re-weigh any vehicle or the contents or load of any vehicle presented to him for that purpose and shall enter in a book and also give to the person in charge of the vehicle a ticket or note in the form contained in the Third Schedule to this Order or as near thereto as circumstances admit stating—

- (a) the contents or load of such vehicle;
- (b) the gross weight of such vehicle;



A.D. 1925.

- (c) the number of such vehicle if marked thereon;
- (d) the tare weight of such vehicle if ascertainable;  
and
- (e) The time of weighing such vehicle;

for which ticket or note he may exact from the person in charge of the vehicle such fees as may be fixed by the Corporation under the provisions of this Part of this Order but such fees shall be repaid to the person in charge of the vehicle by the person receiving delivery of the contents or load of the said vehicle.

(3) If the keeper of any such fixed weighing instrument—

- (a) refuses without reasonable excuse to weigh or re-weigh any vehicle or the contents or load of any vehicle; or
- (b) wilfully gives a ticket or note specifying untruly or incorrectly any of the particulars hereinbefore in this section mentioned; or
- (c) so weighs any vehicle or the contents or load of any vehicle as wilfully to defraud any person; he shall be liable to a fine not exceeding five pounds.

## PART VIII.

### BORROWING OF MONEY AND RATES AND ASSESSMENTS.

Repeal of  
part of bor-  
rowing  
powers  
under Order  
of 1921.

45. The power given to the Corporation by section 27 (Power to borrow or raise additional moneys) (1) (a) of the Order of 1921 to borrow the sum of two hundred and six thousand pounds in respect of the road and sea wall works by the said Order authorised is hereby limited and restricted to a power to borrow the sum of seventy thousand pounds and the said section is hereby repealed in so far as it confers power to borrow in excess of the sum of seventy thousand pounds.

Power to  
borrow or  
raise addi-  
tional  
moneys.

46.—(1) The Corporation may from time to time (in addition to any moneys they are now authorised to borrow or raise) borrow or raise for the several purposes of this Order sums not exceeding the amounts hereinafter mentioned for the respective purposes following (that is to say):—

- (a) In respect of the purchase of lands and properties and the construction of the street works by



this Order authorised the sum of eighty-one thousand six hundred and fifty pounds; A.D. 1925.

(b) In respect of the tramways by this Order authorised the sum of thirty-five thousand nine hundred and fifty-three pounds;

(c) In respect of the costs charges and expenses of and incident to the preparing and applying for and the issue of this Order and the confirmation thereof by Parliament or otherwise in relation thereto such sum as may be necessary.

(2) All moneys borrowed under this section shall be applied only to the purposes for which they are authorised to be borrowed.

(3) If having borrowed any money under the powers of this section the Corporation pay off the same or any part thereof otherwise than by instalments or by means of a sinking fund as in this Part of this Order prescribed or out of the proceeds of the sale of lands or other moneys received by them on capital account (not being borrowed moneys) they may re-borrow the same and so on from time to time Provided that all moneys so re-borrowed shall for the purposes of repayment be deemed part of the original loan and shall be repaid within the period prescribed for the repayment of the moneys in lieu of which such re-borrowing has been made.

47. Part V. (Estimates and assessments) and Part XXXVII. (Borrowing and raising of money) of the Act of 1882 section 33 (Issue of redeemable police debenture stock) of the Dundee Corporation Act 1894 and section 23 (Amendment as regards Dundee police debenture stock) of the Dundee Gas Commissioners Order 1910 shall except as otherwise by this Order provided extend and apply to this Order in the same way and to the same effect as if the purposes of this Order were purposes of the said Acts and Order Provided that the street works and tramways by this Order authorised shall be deemed to be embraced under the first second third and fourth heads of section 32 (Estimates to be made up) of the Act of 1882 Provided further that as regards any moneys borrowed for tramway purposes in virtue of this Order the free annual revenue from the common good of the city after deduction of the interest of the debt which the city may owe and the usual annual outgoings of the city shall be

Certain provisions of former Acts and Order to apply.



A.D. 1925. charged along with the assessments authorised by the said Acts and this Order with the money borrowed for the purposes aforesaid and that the said free annual revenue after deduction as aforesaid shall be primarily liable therefor. Provided further that no money shall be borrowed or raised for the purposes of the tramways authorised by this Order other than under the powers of this Order. Provided further that the Corporation shall not pay to the common good of the burgh more than one thousand pounds in any one year from their tramway undertaking. Provided further that section 321 (Repayment of money borrowed other than that now due by instalments of sinking fund in sixty years) of the Act of 1882 in its application to all moneys to be borrowed or raised under the powers of this Order for tramways and tramway purposes shall be read and have effect as if the period for the repayment thereof were twenty years from the borrowing or raising thereof instead of sixty years as mentioned in the said section or as if the sum provided by the said section to be appropriated as a sinking fund were a sum not less than one-twentieth part of the said moneys to be so borrowed or raised as aforesaid instead of one-sixtieth part thereof. Provided further that the said section 321 in its application to all moneys to be borrowed or raised under the powers of this Order shall be read and have effect as if the same contained only the non-cumulative provisions therein for repayment.

Application  
of sections  
of Dundee  
Corporation  
Order 1907.

48. The sections hereinafter specified of the Order of 1907 shall so far as not varied by or inconsistent with the provisions of this Order extend and apply mutatis mutandis to the moneys authorised to be borrowed by the Corporation under this Order and to the Corporation and all other persons in respect thereof as fully and effectually as if those sections had been re-enacted in this Order with reference thereto (that is to say):—

Section 96 (Bonds by the Corporation);

Section 97 (Bonds may be transferred by indorsement);

Section 98 (Bonds to be recorded and transfers to be registered).

Amendment  
of section 34  
of Act of  
1882.

49. Section 34 (Exemptions from assessments) of the Act of 1882 shall from and after Whit Sunday 1925 be read and have effect as if the words "or of education" were omitted therefrom. Provided that the Corporation



shall not impose levy or recover assessments in respect of the property within the City belonging for the time being to University College Dundee the University Court of the University of St. Andrews the Trustees of the Dundee Technical College and School of Art or the St. Andrews Provincial Committee for the Training of Teachers.

A.D. 1925.

## PART IX.

### MISCELLANEOUS.

50. The period limited by section 19 (Period for completion of street works) of the Improvements and Tramways Act 1913 as extended by the Dundee Corporation (Improvements and Tramways) Act 1913 (Extension of Time) Order 1919 and the Order of 1920 is hereby extended for a further period of ten years.

Extension of time for street works under Improvements and Tramways Act 1913.

51. The period limited by section 30 (Limitation of time for compulsory purchase of lands) of the Improvements and Tramways Act 1913 as extended by the Dundee Corporation (Improvements and Tramways) Act 1913 (Extension of Time) Order 1919 and the Order of 1920 is hereby extended for a further period of five years.

Extension of time for purchase of lands under Improvements and Tramways Act 1913.

52.—(1) The Corporation may at a meeting specially called for the purpose resolve to acquire lands and heritages or any part thereof within the city (not being lands and heritages belonging to and acquired or held by any railway company or canal company or the trustees of the harbour of Dundee for the purposes of a railway or railway station or depôt or as a canal quay wharf depôt or towing-path or as a harbour dock or wharf) for the purpose of widening enlarging extending or otherwise improving any of the streets and they may hold sell or feu any parts of such lands and heritages which shall not be required for such purposes or they may build on such lands and heritages In order to acquire such lands and heritages the Corporation shall have power to purchase and take the same by agreement under the Lands Clauses Acts and failing such purchase by agreement they may present a petition to the sheriff for authority to put in force the powers of the Lands Clauses Acts with respect to the acquisition of lands otherwise than by agreement in the manner provided in section 60 of the Burgh Police (Scotland) Act 1892.

Power to acquire land for improvement of streets.



A.D. 1925.

(2) Any owner or occupier whose property may be affected or the Corporation if dissatisfied with the decision of the sheriff may appeal to the Secretary for Scotland who may order further inquiry or take such other steps as he may think desirable in the circumstances and may thereafter issue an order either in accordance with the prayer of the petition or with such modifications or alterations thereon as may appear to him to be requisite and may make such order as he thinks fit in reference to the costs charges and expenses incurred in relation to such order.

(3) Notwithstanding the provisions of this section and of the Acts therein referred to the owner of any lands and heritages proposed to be acquired by the Corporation under the powers of this section may within three months from the date of the service upon him of the notice to take such lands and heritages or any part thereof give a counter notice to the Corporation that he shall give up to the Corporation so much of his said lands and heritages as may be required to carry out the proposed widening enlarging extending or otherwise improving of such street and that he shall consent to the removal by the Corporation of any building or part thereof upon such portion of such lands and heritages to be given up by him as aforesaid and that he shall become bound to reconstruct at his own expense any building upon the portion of the said lands and heritages remaining in his possession according to the line and level fixed by the Corporation for such street.

(4) Upon such counter notice being duly served upon the Corporation their rights to take the lands and heritages of such owner shall be limited to the portion of the said lands and heritages actually required to carry out the proposed widening enlarging extending or otherwise improving of such street.

(5) The Corporation may for the purpose of carrying out the powers conferred upon them by this section borrow such sums of money as may be authorised by the Secretary for Scotland by a certificate under his hand which certificate he is hereby empowered to give.

(6) The Corporation may re-borrow any part of the amount so authorised which may have been repaid by them otherwise than by means of the sinking fund hereinafter provided or out of the moneys received by them



upon the sale of any lands acquired by them under the powers of this section. A.D. 1925.

(7) The Corporation shall annually set apart as a sinking fund such sum as will secure that the amount borrowed by them for the purposes of this section and not paid off by other means than such sinking fund shall be repaid within such period not exceeding fifty years as may be allowed by the Secretary for Scotland and they shall apply such sinking fund in paying off the principal sum so borrowed.

53.—(1) Notwithstanding the provisions of the Act of 1882 or any Act incorporated therewith the Corporation shall in the month of August 1925 and at the end of every three years thereafter revise the rates and dues leviable by them at and for their slaughter-houses and fix such reasonable rates and dues not exceeding the maximum rates and dues contained in the First Schedule to this Order as they think proper and in case the persons using the said slaughter-houses are dissatisfied with the rates and dues so fixed the same shall upon the application of either party and after seven days' previous notice to the other party of such intended application be fixed and determined by the sheriff in a summary manner and the decision of the sheriff shall be final and conclusive and not subject to review.

Revisal of rates and dues for slaughter-houses.

(2) Section 95 (Revisal of rates and dues for slaughter-houses) of the Dundee Extension and Improvement Act 1892 and the First Schedule to that Act are hereby repealed.

54.—(1) No person shall carry on business as or be employed within the city as a slaughterman without a licence from the Corporation authorising him to do so which licence the Corporation shall have power of granting or refusing. Provided that no licence under this section shall be required where animals are slaughtered by their owners or by the servants of such owners.

Slaughtermen to be licensed.

(2) No animals shall be permitted to be slaughtered by the owners or by the servants of such owners within the slaughter-houses of the Corporation unless the superintendent of the slaughter-houses is satisfied as to the competency of such owners or servants for the work.



A.D. 1925.

(3) An application for any licence under this section shall be in such form as the Corporation shall from time to time require and shall be signed by the applicant and shall specify the Christian name and surname and place of abode of the applicant.

(4) Every such licence shall be signed as the Corporation shall direct and shall be in force for one year only from the day of the date of such licence or until the next general licensing day in case any such general licensing day be appointed by the Corporation as they are hereby authorised to do.

(5) There shall be specified in every such licence the Christian name and surname and place of abode of the applicant.

(6) For every such licence and for every renewal thereof there shall be paid to the Corporation such sum not exceeding one shilling as the Corporation shall direct and such licence shall be entered in a register to be provided and kept by the Corporation for that purpose. Every licensee shall be provided by the Corporation with a badge for which he shall pay a sum of two shillings and sixpence and which sum shall be returnable when the licence is withdrawn or given up and the badge returned to the Corporation.

(7) Whenever a licensee changes his place of abode he shall within twenty-four hours next after every such change give notice thereof in writing to the Corporation specifying his new place of abode and shall within three days after such change produce his licence at the office of the Corporation to have a memorandum of such change endorsed thereon.

(8) Any such licence may be suspended or revoked by any magistrate or court before whom the licensee is convicted of any offence which in the opinion of the magistrate or court renders it expedient that such licence should be suspended or revoked.

(9) No licensee shall charge a greater sum for his services than shall be fixed by agreement between the Dundee and District Master Butchers' Association or their committee and a committee of not exceeding six licensees elected by the licensees for the time being or failing such agreement as shall be fixed by an arbiter to



be appointed on the application of either of such parties by the sheriff. A.D. 1925.

(10) Any person who commits any breach of this section shall be liable to a penalty not exceeding forty shillings and to a further penalty not exceeding ten shillings for every day during which such breach continues.

(11) The Corporation shall keep separate accounts of their receipts and expenditure in respect of the live stock market the dead meat market and their slaughter-houses respectively.

55. The expression "lodging-house" in Part V. Regulations of common lodging-houses of the Public Health (Scotland) Act 1897 in its application to the city shall from and after the commencement of this Order mean a house or part thereof in which any person is lodged by the night at a rate not exceeding one shilling per night for each person whether the same be payable nightly or weekly or at any period not longer than a fortnight and shall include any place where emigrants are lodged and all boarding-houses for seamen irrespective of the rates charged for lodgings or boarding the expression "lodging-house keeper" shall mean the occupier of such lodging-house who lodges such person and the word "lodged" shall mean any person so lodged. Provided that the Scottish Board of Health or the Corporation with the approval of that Board may from time to time diminish or again raise the sum payable per night according to which as in this section mentioned it is ascertained whether a house or part thereof is a common lodging-house but so as not to exceed one shilling and sixpence per night.

Definition of  
lodging-  
house  
keeper and  
lodged.

56.—(1) For the purpose of aiding the constables appointed by the superintendent of police on occasions of emergency and suppressing or preventing any tumult or riot that may take place or be reasonably apprehended the magistrates may from time to time appoint any persons who have attained the age of twenty years and are either the owners or occupiers of lands or heritages within the city or carry on business or are employed within the city to act as special constables and may recall such appointment at pleasure and such special constables shall when sworn before any magistrate have the same

As to ap-  
pointment  
of police  
constables.



[Ch. viii.] *Dundee Corporation and* [15 GEO. 5.]  
*Water and Gas Order Confirmation Act, 1925.*

A.D. 1925. — powers and privileges as constables appointed by the superintendent of police or chief constable and if any person having been sworn shall refuse or fail to act when required without a reasonable excuse he shall be liable to a penalty not exceeding five pounds.

(2) Section 51 (Magistrates may appoint special constables) of the Act of 1882 and section 31 (Amendment of section 51 of Act of 1882) of the Dundee Corporation Order 1920 are hereby repealed.

Lights on  
vehicles.

57.—(1) During the period between one hour after sunset and one hour before sunrise every person using any carriage of any description (except as otherwise in this section provided) in any street shall carry a lamp attached thereto and so constructed or placed as to exhibit a white light visible within a reasonable distance in the direction towards which the vehicle is proceeding or is intended to proceed and to exhibit a red light so visible in the reverse direction and such lamp shall be so placed on the extreme right or offside of such vehicle in such position as to secure that the light therefrom shall be clear of all obstruction both in front and to the rear of such lamp.

(2) Any person who shall contravene the provisions of this section shall be liable to a penalty not exceeding forty shillings and any offence under this section may be tried by any magistrate and disposed of as a police offence.

(3) The provisions of this section shall not extend or apply to any vehicle to which the Motor Car Acts 1896 and 1903 and Acts amending the same or section 25 (Regulations for locomotives on highways) of the Local Government (Scotland) Act 1908 apply or to any tramcar.

(4) This section shall cease to have effect on the coming into operation in the city of any public Act providing for the lighting of vehicles used on highways.

(5) Section 88 (Carriages and vehicles to exhibit lights within certain hours) of the Dundee Extension and Improvement Act 1892 is hereby repealed.

Byelaws.

58. In addition to the byelaws authorised to be made by the Dundee Corporation Acts 1871 to 1921 and other Acts the town council shall have power to



make and enforce byelaws for or with respect to all or any of the following matters (that is to say):— A.D. 1925.

(1) For regulating the hawking selling or offering or exposing for sale on streets and public places of goods or articles of any description whatever except meat food products fruit vegetables or other articles of food:

(2) For preventing the marking of pavements and buildings by writing or chalking thereon.

59.—(1) Whenever the occupier of any dwelling-house within the limits of gas supply complains to the Gas Commissioners that the supply of gas for lighting purposes as laid on within such dwelling-house is deficient in quantity or not continuously maintained throughout the day the Gas Commissioners may investigate the cause of complaint and if on examination it is found that the want of gas for lighting purposes is caused by reason of the private pipes supplying the property with gas for lighting being too small in diameter or encrusted with rust and if the Gas Commissioners so order the owner of the property shall on a notice to that effect being given by the engineer to the Gas Commissioners be bound to carry out all operations necessary to provide an adequate supply of gas failing compliance with such notice within twenty-one days of the service thereof upon such owner he shall be liable to a penalty not exceeding forty shillings and to a further penalty not exceeding five shillings for every day during which such failure continues. Provided always that such operation shall be carried out in accordance with the byelaws of the Gas Commissioners in force for the time being.

As to deficient supply of gas to dwelling-houses.

(2) In the case of any difference between such owner and the Gas Commissioners the same shall be referred to the sheriff whose decision shall be final.

60.—(1) Every building used or intended to be used as an hotel restaurant hospital boarding-house common lodging-house nursing home warehouse or school or college shall be provided with such means of escape in case of fire for the persons dwelling or employed therein or resorting thereto as the Corporation may reasonably require.

Means of escape from buildings in case of fire.



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(2) The means of escape in case of fire so provided in any building shall be maintained in good condition and free from obstruction.

(3) Any person who shall fail to provide within one month or such longer period as the Corporation may order such means of escape as the Corporation shall require or shall fail to maintain such means of escape in accordance with subsection (2) of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings so long as such failure shall continue.

(4) This section shall not apply to any premises to which the provisions of sections 14 and 15 of the Factory and Workshop Act 1901 or of any Act amending those sections apply.

As to access  
to stairs in  
certain  
buildings.

61.—(1) The owner of any business premises (situated underneath premises used as dwelling-houses) which have a door or doors opening into a common stair or passage shall on receiving a notice from the Corporation requiring the same to be done construct or reconstruct such door or doors in such manner and of such material to the satisfaction of the city engineer and the firemaster as to make the said door or doors sufficiently fire resisting and smoke proof to prevent fire or smoke from getting into the common stair or passage and unless the requirements are complied with by the owner within sixty days he shall be liable to a fine not exceeding one pound for every day the non-compliance continues.

(2) In case of any difference between such owner and the Corporation the same shall be referred to the sheriff whose decision shall be final.

(3) Nothing in this or the last preceding section shall compel the owner or occupier of any warehouse or building used as a customs or excise warehouse to make in such warehouse or building any alteration which has not been approved by the Commissioners of Customs and Excise.

As to allow-  
ances to  
officers and  
servants of  
fire depart-  
ment.

62.—(1) The Corporation may if they think fit grant an annual allowance not exceeding half pay or a gratuity not exceeding the amount specified in the immediately succeeding subsection hereof to any officer or servant on the permanent staff of their fire department



who may through bodily or mental infirmity duly certified by a legally qualified medical practitioner to be nominated (failing agreement) by the sheriff on the application of the Corporation become permanently incapacitated for the discharge of his duties or may if they think fit grant such a gratuity to the widow or family of any such officer or servant who may die whilst in the service of the Corporation. A.D. 1925.

(2) Every such allowance or gratuity shall be paid out of the rate assessment or revenue on which the salary or wages of the officer or servant would have been charged if he had continued in his office or service or the Corporation may contribute annually or otherwise from the revenues received by them in connection with their fire department such sums as they may think fit for the purposes of establishing a fund that may be used for the benefit of the officers and servants employed by them in a permanent capacity in such department and no gratuity shall in any case exceed the amount of one month's pay for every completed year of approved service calculated on the average of the salary or wages paid for the immediately preceding five years.

63. Section 121 (Notices plans &c. of new buildings) of the Act of 1882 shall from and after the commencement of this Order be read and have effect as if the words "and where such building or the garden thereof shall abut upon a public thoroughfare the height of the boundary walls and fences abutting on such thoroughfare" were inserted therein after the words "or to be used with such building." Amendment of section 121 of Act of 1882.

64. Subject to the provisions of this Order the provisions of the Act of 1882 and the Acts incorporated therewith with reference to the recovery of fines penalties and forfeitures imposed or authorised to be imposed by that Act shall be and are hereby made applicable to the recovery of all fines penalties and forfeitures imposed or authorised to be imposed by or under the provisions of this Order. As to fines penalties and forfeitures and recovery thereof.

65. Nothing in this Order shall affect prejudicially any estate right power privilege or exemption of the Crown or shall subject to the provisions of this Order any land buildings or works vested in or occupied by Crown rights.



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the Crown or any department of His Majesty's Government except to such extent as His Majesty or such department may voluntarily agree And in particular nothing herein contained shall authorise the Corporation to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land heritages subjects or rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Woods or of the Board of Trade respectively without the consent in writing of the Commissioners of Woods or the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose which consent the said Commissioners and Board are hereby respectively authorised to give.

Saving saving provisions in Act of 1882.

66. Nothing contained in this Order shall alter prejudice or affect the saving provisions contained in sections 330 (Saving rights of the Crown) 331 (Saving rights under Crown Lands Act) and 333 (Saving rights of magistrates and town council of Dundee) of the Act of 1882 but such saving provisions shall apply to this Order and for the purposes thereof.

Saving clause for Dundee Harbour.

67. Nothing contained in this Order or in any Act incorporated in whole or in part with this Order shall repeal alter diminish or affect any rights interests titles dues powers jurisdictions immunities privileges exemptions and authorities of the trustees of the harbour of Dundee secured under any statutes of and relating to the trustees and their harbour undertaking or under any of the Acts public local or private relating to the Corporation.

Costs of Order.

68. The costs charges and expenses of and incident to the preparing and applying for and the issue of this Order and the confirmation thereof by Parliament or otherwise in relation thereto shall be paid as to forty-eight fiftieth parts thereof by the Corporation in their capacity as Police Commissioners as to one other fiftieth part thereof by the Water Commissioners and as to the remaining fiftieth part thereof by the Gas Commissioners Any money borrowed for paying any such costs charges and expenses shall be repaid within five years from the commencement of this Order.



THE FIRST SCHEDULE.

A.D. 1925.

TABLES OF MAXIMUM RATES AND DUES LEVIABLE  
BY THE CORPORATION OF DUNDEE AT AND FOR THE  
SLAUGHTER-HOUSES.

|                                                                                                                                                                                         | s. | d. |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----|----|
| Each ox cow bull or heifer slaughtered - - - -                                                                                                                                          | 2  | 6  |
| Each calf slaughtered - - - -                                                                                                                                                           | 0  | 9  |
| Each sheep lamb or goat slaughtered - - - -                                                                                                                                             | 0  | 6  |
| Each boar sow hog or pig (including the use of cauldron<br>and hot water) slaughtered - - - -                                                                                           | 2  | 6  |
| If electric light supplied by the Corporation is used<br>during killing 2d. extra to be paid for each ox cow<br>bull heifer boar sow hog or pig and 1d. for each<br>sheep lamb or calf. |    |    |
| Country or foreign carcasses or part thereof brought to<br>slaughter-houses - - - - - each                                                                                              | 2  | 0  |
| Country or foreign carcasses or part thereof brought to<br>slaughter-houses—examining if suspected - - - each                                                                           | 5  | 0  |
| Examining carcasses of suspected cattle after slaughter<br>each                                                                                                                         | 5  | 0  |
| Cleaning feet and tripe of each cattle beast - - -                                                                                                                                      | 1  | 3  |
| Cleaning feet of each calf sheep or lamb - - -                                                                                                                                          | 0  | 3  |
| Cleaning feet of each pig - - - -                                                                                                                                                       | 0  | 2  |
| Each cattle beast stored in general lairs - - per night                                                                                                                                 | 0  | 6  |
| Each calf or pig stored in general lairs - - per night                                                                                                                                  | 0  | 3  |
| Each sheep or lamb stored in general lairs - per night                                                                                                                                  | 0  | 1  |
| Feed of hay—cattle - - - - - each                                                                                                                                                       | 0  | 9  |
| sheep or lamb - - - - - each                                                                                                                                                            | 0  | 1  |
| pig - - - - - each                                                                                                                                                                      | 0  | 4  |

Unspecified animals or work    Such reasonable rate or rates  
as the Corporation may from time to time fix or in case of difference  
as shall be settled by the sheriff.

NOTE    The manure of the lairs and the garbage from the  
slaughter-houses and the blood hoofs and tripe fleshings of any  
animal slaughtered within the slaughter-houses and the refuse  
of any tallow searched on the premises shall be the property of  
the Corporation. The owners of animals shall pay a reasonable  
rent for the gut-house and a reasonable charge for the provision  
of steam light and water.



[Ch. viii.] *Dundee Corporation and* [15 GEO. 5.]  
*Water and Gas Order Confirmation Act, 1925.*

A.D. 1925. TABLE OF MAXIMUM TOLLS OR DUES LEVIABLE BY  
 THE CORPORATION OF THE BURGH OF DUNDEE AT  
 AND FOR THE MARKETS.

(1) *Cattle.*

|                                                                                                                      | s. | d. |
|----------------------------------------------------------------------------------------------------------------------|----|----|
| For every ox cow bull or heifer - - - - - each                                                                       | 2  | 0  |
| For every calf - - - - - each                                                                                        | 0  | 5  |
| For every sheep or lamb - - - - - each                                                                               | 0  | 3  |
| For every boar sow hog pig or goat - - - - - each                                                                    | 0  | 8  |
| For every horse - - - - - each                                                                                       | 1  | 6  |
| Vehicle for sale entering market - - - - - each                                                                      | 0  | 9  |
| Load of hay for sale entering market - - - - - each                                                                  | 0  | 9  |
| Load of turnips for sale entering market - - - - - each                                                              | 0  | 6  |
| Set of harness agricultural implements and such like article<br>each                                                 | 0  | 6  |
| Feed of hay - - - - - each                                                                                           | 0  | 9  |
| Ox cow or horse stored in market other than during market<br>hours—For every 12 hours or part thereof - - - - - each | 0  | 6  |
| Calf or pig stored in market other than during market<br>hours—For every 12 hours or part thereof - - - - - each     | 0  | 3  |
| Sheep or lamb stored in market other than during market<br>hours—For every 12 hours or part thereof - - - - -        | 0  | 1  |
| Weighing loads on steelyards - - - - - each                                                                          | 0  | 2  |
| For each auction sale per hour or part thereof by any<br>auctioneer who has not a rented mart - - - - -              | 5  | 0  |

(2) *Dead Meat.*

|                                                          |   |   |
|----------------------------------------------------------|---|---|
| Carcases of ox cow bull or heifer or part thereof - each | 2 | 0 |
| Carcases of sheep or lamb - - - - - each                 | 0 | 2 |
| Carcases of pig - - - - - each                           | 0 | 6 |
| Carcases of sink calf - - - - - each                     | 0 | 3 |
| Carcases of fat calf - - - - - each                      | 0 | 9 |
| Frozen beef in cases - - - - - each                      | 0 | 6 |

MAXIMUM WEIGHING TOLLS IN DEAD MEAT MARKET.

|                                                  |   |   |
|--------------------------------------------------|---|---|
| Every whole ox cow bull or heifer - - - - - each | 0 | 3 |
| Every whole calf - - - - - each                  | 0 | 2 |
| Every whole sheep or lamb - - - - - each         | 0 | 1 |

The above weighing tolls to be reduced to one-half in respect  
 of part of any animal.



THE SECOND SCHEDULE.

A.D. 1925.

(Referred to in the section of this Order of which the  
marginal note is "Delivery of coal over two  
hundredweight.")

WEIGHT TICKET OR NOTE ON DELIVERY OF COAL OVER TWO  
HUNDREDWEIGHT.

.....(*here insert the name of the buyer*)  
Take notice that you are to receive herewith.....tons  
.....cwts.....lbs of coal.

(When sold in sack add)

in.....sacks each containing.....cwt.

(When sold in bulk add)

|                                          |   |   |   |   | Tons. | cwts. | lbs. |
|------------------------------------------|---|---|---|---|-------|-------|------|
| Weight of coal and vehicle               | - | - | - | - |       |       |      |
| Tare weight of vehicle                   | - | - | - | - |       |       |      |
| <hr/>                                    |   |   |   |   |       |       |      |
| Net weight of coal herewith delivered to |   |   |   |   |       |       |      |
| purchaser                                | - | - | - | - |       |       |      |
| <hr/>                                    |   |   |   |   |       |       |      |

.....(*here insert the name of seller*)

.....(*here insert the name of the  
person in charge of the vehicle*).

Where coal is delivered by means of a vehicle the seller must  
deliver or send by post or otherwise to the purchaser or his  
servant before any part of the coal is unloaded a ticket or note in  
this form.

Any seller of coal who delivers a less quantity than is stated  
in this ticket or note is liable to a fine.

Any person in charge of a vehicle used for the delivery of  
coal who having received a ticket or note for delivery to the  
purchaser refuses or neglects to deliver it to the purchaser or his  
servant is liable to a fine.



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*Water and Gas Order Confirmation Act, 1925.*

A.D. 1925.

THE THIRD SCHEDULE.

(Referred to in the section of this Order of which the marginal note is "Public weighing instruments.")

WEIGHT TICKET OR NOTE.

CITY OF DUNDEE.

No.....Weighing office....day of  
 .....19.....

No. of vehicle.....

Sold by .....

Purchased by .....

|                                      | Weight. | Cwts. | Qrs. | Lbs. | Hour. |
|--------------------------------------|---------|-------|------|------|-------|
| Contents of load consisting of ..... | Gross - |       |      |      |       |
| .....                                | Tare -  |       |      |      |       |
| .....                                | Nett -  |       |      |      |       |

.....Weigher. Fee paid .....

THE FOURTH SCHEDULE.

(Referred to in the section of this Order of which the marginal note is "Owners may be required to sell parts only of certain properties.")

PROPERTIES WHEREOF PORTIONS ONLY ARE REQUIRED  
 TO BE TAKEN.

| Parish.          | Number on Deposited Plan. | Description of Property.           |
|------------------|---------------------------|------------------------------------|
| WORK No. 1.      |                           |                                    |
| Parish of Dundee | 1 1 1 1                   | Ground parapet walls and railings. |
| Combination.     |                           |                                    |
| Do.              | 2                         | Ground parapet walls and railings. |



[15 GEO. 5.] *Dundee Corporation and* [Ch. viii.]  
*Water and Gas Order Confirmation Act, 1925.*

| Parish.                          | Number on<br>Deposited<br>Plan. | Description of Property.                                                  | A.D. 1925. |
|----------------------------------|---------------------------------|---------------------------------------------------------------------------|------------|
| WORK No. 2.                      |                                 |                                                                           |            |
| Parish of Dundee<br>Combination. | 1 1                             | Garden ground walls and railings.                                         |            |
| WORK No. 3.                      |                                 |                                                                           |            |
| Parish of Dundee<br>Combination. | 1                               | Timber building used as office and<br>workshop.                           |            |
| Do.                              | 2                               | Garden ground sculptor's yard walls<br>railings fences and appurtenances. |            |
| Do.                              | 6 6                             | Garden ground walls railings and<br>fences.                               |            |
| Do.                              | 7                               | Building consisting of byre and<br>garage.                                |            |
| Do.                              | 8                               | Open ground walls and gateway.                                            |            |
| WORK No. 4.                      |                                 |                                                                           |            |
| Parish of Dundee<br>Combination. | 1                               | Garden ground walls and railings.                                         |            |
| Do.                              | 2                               | Garden ground walls and railings.                                         |            |
| Do.                              | 3                               | Garden ground walls and railings.                                         |            |
| WORK No. 6.                      |                                 |                                                                           |            |
| Parish of Dundee<br>Combination. | 1                               | Garden ground walls and railings.                                         |            |
| Do.                              | 3                               | Mutual wall.                                                              |            |
| Do.                              | 4 4                             | Church ground and fence.                                                  |            |
| Do.                              | 5                               | Mutual wall.                                                              |            |
| Do.                              | 6                               | Garden ground and fence.                                                  |            |
| Do.                              | 7                               | Mutual wall.                                                              |            |
| Do.                              | 8                               | Garden ground walls and railings.                                         |            |
| Do.                              | 9                               | Mutual wall.                                                              |            |
| Do.                              | 10                              | Garden ground wall gateway and<br>railing.                                |            |
| Do.                              | 11                              | Garden ground wall and railing.                                           |            |
| Do.                              | 12                              | Mutual wall.                                                              |            |
| Do.                              | 13                              | Garden ground wall and railing.                                           |            |
| Do.                              | 14                              | Mutual wall.                                                              |            |
| Do.                              | 15                              | Garden ground wall and railing.                                           |            |
| Do.                              | 16                              | Mutual wall.                                                              |            |



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*Water and Gas Order Confirmation Act, 1925.*

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| Parish.                           | Number on<br>Deposited<br>Plan. | Description of Property.                       |
|-----------------------------------|---------------------------------|------------------------------------------------|
| <b>WORK No. 6</b><br>(continued). |                                 |                                                |
| Parish of Dundee<br>Combination.  | 17                              | Garden ground wall and railing.                |
| Do.                               | 18                              | Mutual wall.                                   |
| Do.                               | 19                              | Garden ground walls and railing.               |
| Do.                               | 20                              | Mutual wall.                                   |
| Do.                               | 21                              | Garden ground walls and railing.               |
| Do.                               | 22                              | Mutual wall.                                   |
| Do.                               | 23                              | Garden ground walls and railing.               |
| Do.                               | 24                              | Mutual wall.                                   |
| Do.                               | 25                              | Garden ground walls fences and<br>gateway.     |
| <b>WORK No. 7.</b>                |                                 |                                                |
| Parish of Dundee<br>Combination.  | 2                               | Garden ground walls stair and green-<br>house. |
| Do.                               | 3                               | Mutual wall.                                   |
| Do.                               | 4                               | Garden ground walls and stair.                 |
| Do.                               | 5                               | Garden ground wall and fence.                  |
| Do.                               | 6                               | Mutual wall.                                   |
| Do.                               | 7                               | Garden ground walls and stair.                 |
| Do.                               | 8                               | Mutual wall.                                   |
| Do.                               | 9                               | Garden ground walls and stair.                 |
| Do.                               | 10                              | Garden ground walls and stair.                 |
| Do.                               | 11                              | Mutual wall.                                   |
| Do.                               | 12                              | Garden ground walls and stair.                 |
| Do.                               | 13                              | Mutual wall.                                   |
| Do.                               | 14                              | Garden ground walls and stair.                 |
| Do.                               | 15                              | Mutual wall.                                   |
| Do.                               | 16                              | Garden ground walls and stair.                 |
| Do.                               | 17                              | Mutual wall.                                   |
| Do.                               | 18                              | Garden ground walls and stair.                 |
| Do.                               | 23                              | Playground and wall.                           |
| Do.                               | 24 24                           | Garden ground walls and gateway.               |
| Do.                               | 25 25                           | Buildings consisting of latrines.              |
| Do.                               | 26                              | Playground walls and gateway.                  |
| Do.                               | 28                              | Mutual wall.                                   |
| Do.                               | 29                              | Garden ground walls fences and<br>gateway.     |
| Do.                               | 30 30 30                        | Buildings consisting of greenhouses.           |
| Do.                               | 31                              | Mutual wall.                                   |
| Do.                               | 32 32 32                        | Garden ground walls and gateway.               |
| Do.                               | 33                              | Mutual wall.                                   |
| Do.                               | 35                              | Garden ground with stair and fence.            |
| Do.                               | 37                              | Ground.                                        |



[15 GEO. 5.]      Dundee Corporation and      [Ch. viii.]  
Water and Gas Order Confirmation Act, 1925.

| Parish.                                                        | Number on<br>Deposited<br>Plan. | Description of Property.                               |
|----------------------------------------------------------------|---------------------------------|--------------------------------------------------------|
| WORK No. 7<br>(continued).<br>Parish of Dundee<br>Combination. | 40 40                           | Ground walls and fences.                               |
| Do.                                                            | 41                              | Mutual wall.                                           |
| Do.                                                            | 45                              | Private lane.                                          |
| Do.                                                            | 46 46                           | Garden ground and walls.                               |
| Do.                                                            | 47                              | Private lane.                                          |
| Do.                                                            | 48                              | Burying ground.                                        |
| Do.                                                            | 50 50 50 50                     | Garden ground open court dung pit<br>walls and fences. |

A.D. 1925.

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